



Exhibitor/Sponsor Application and Space Agreement

(SEE: RULES AND REGULATIONS AND EXHIBITOR/SPONSOR AGREEMENT)

2007 – Inaugural Three Stop Tour:

I Would Like To Participate in the Inaugural Three Stop Tour beginning in February 2007 _____

EXHIBITOR INFORMATION (Please PRINT and Complete in its Entirety)

NAME OF COMPANY/DIVISION _____
ADDRESS _____
CITY _____ STATE/COUNTRY _____ ZIP CODE _____
TELEPHONE (LAND LINE) _____ MOBILE _____ FAX _____
EVENT CONTACT PERSON _____
EMAIL _____ TITLE _____
PR CONTACT PERSON _____ EMAIL _____
PR PHONE (LAND LINE) _____ MOBILE _____ FAX _____

EXHIBIT SPACE AND/OR SPONSORSHIP FEES (Please See: Exhibitor/Sponsorship Opportunities for Fees)

SIZE OF BOOTH SPACE REQUIRED = \$ _____
LEVEL OF SPONSORSHIP DESIRED..... = \$ _____
OTHER FEES (Lanyard/Show Bag/Show Guide Ads/Etc.).... = \$ _____
TOTAL EXHIBIT/SPONSORSHIP FEES..... = \$ _____

PAYMENT TERMS : 50% DUE AND PAYABLE UPON RECEIPT OF INVOICE. 100% PAYABLE 60 DAYS PRIOR TO THE EVENT.

DESCRIBE YOUR PRODUCTS AND/OR SERVICES

Exhibitor agrees to prepare an Exhibit of its products and/or services and abide by the Rules and Regulations of The HDTV Expo. This Agreement, when accepted by HDTV Magazine and/or Affinity Marketing, will constitute a binding contract between the Exhibitor/Sponsor and HDTV Magazine and Affinity Marketing. Furthermore, the Exhibitor/Sponsor's display must comply with any and all limitations set forth by the Event Facility. The undersigned acknowledges that he/she accepts the Terms and Conditions as set forth in this Agreement and is authorize to sign this Agreement on behalf of the Exhibitor/Sponsor

SIGNATURE _____ DATE _____
PRINT NAME _____ TITLE _____

Please Complete this Form and Return it to: HDTV Magazine by Mail (753 E. Fall Creek Rd., Alsea, OR 97324)
You may also Fax this Form to: (978) 359-0791. If you have questions phone Dale Cripps (800) LOV-HDTV

Phone Affinity Marketing for Payment : (260) 760-7352 - Company Check/Credit Card and Bank Wire Accepted.



Exhibitor Rules and Regulations

1. SPACE LOCATION, BADGES AND SECURITY SERVICES:

General security service will be hired to help protect your property while you participate at the HDTV Expo. However, all Exhibitor/Sponsor's are responsible for their own exhibits and personal belongings. Badges will be supplied for all Exhibitor/Sponsor personnel. HDTV Magazine and/or Affinity Marketing will make all reasonable efforts to make the Exhibit Space available in the location requested by the Exhibitor/Sponsor but makes no guarantee that such location will be available. HDTV Magazine and/or Affinity Marketing reserve the right to modify, reassign or close any Exhibit Space location. HDTV Magazine and/or Affinity Marketing shall not be responsible or liable for any errors or omissions in any Show Guide descriptions.

2. INSTALLATION AND DISMANTLING OF BOOTH SPACE:

The Exhibitor/Sponsor shall comply with all rules and regulations applicable to the receiving, set up, display or removal of exhibit displays. Rules and regulations relating to displays, exhibits and the assigned exhibit space (the "Exhibit Space") shall be established by each specific venue and the selected Convention Decorator. Such information will be supplied by HDTV Magazine and/or Affinity Marketing in a separate document. The Exhibitor/Sponsor will furnish HDTV Magazine and/or Affinity Marketing with insurance certificates (if requested) by HDTV Magazine and/or Affinity Marketing prior to or during the Event. Failure to adhere to move-in/move-out schedules may result in forfeiture of the Exhibit Space, without refund of any Exhibit Fees.

3. EXHIBITOR PRODUCTS, EQUIPMENT AND SERVICES:

The Exhibitor/Sponsor is solely responsible and liable for its products and services. The Exhibitor/Sponsor shall not bring any merchandise, equipment, and/or packing material into or out of the Exhibit Space during Event hours or leave any such items in any common areas of the Event Facility. Dates and times for installation and dismantling of booth space will likely vary based upon the selected venue and will be supplied by HDTV Magazine and/or Affinity Marketing. Distribution of any literature or publication must be within the confines of the Exhibitor/Sponsor's own booth space. No Exhibitor/Sponsor shall operate in such a way as to block an aisle or otherwise interfere with another Exhibitor/Sponsor's booth space.

4. CONTRACTOR/DECORATOR SERVICES:

Certain firms will be designated to serve as official contractors/decorators to provide security support and facility services for the Event (the "Official Contractor/Decorator") for all such services. HDTV Magazine and/or Affinity Marketing shall not be responsible or liable for the performance or any act, error or omission of any Official Contractor/Decorator. Along with each 10' x 10' booth Exhibitor/Sponsor will be provided with 8' tall back drapes, 3' tall side drapes and a 7" x 44" identification sign (one per Exhibitor/Sponsor).

5. PROPER USE OF EVENT SPACE - EXHIBITOR/SPONSOR CONDUCT:

Any Exhibitor supplied booth must be free-standing and self supporting. The hotel and/or convention center has all jurisdiction in rigging and in hanging signs from the ceiling (No Exhibitor/Sponsor is permitted to suspend or attach any materials to the walls, ceiling or floor or any hotel and/or convention center property). It is unsafe to use furniture as ladders to attach spotlights of any kind or signs to booth framework. HDTV Magazine and/or Affinity Marketing will be liable for such acts. The Exhibitor/Sponsor shall not sell or exchange goods or money or serve any food or beverage items on the Event premises without HDTV Magazine and/or Affinity Marketing's prior written consent. The Exhibitor/Sponsor and its employees, agents and representatives shall not display or offer products, literature or presentations containing nudity, sexually explicit or other offensive material. Any exhibit or exhibitor that is judged to be in poor taste by show management will be removed from the exhibit area prior to the opening of the Expo. Smoking is strictly prohibited in all areas of the Expo. Hot air or gas filled balloons are prohibited. Public address or audio/visual systems may be used within an Exhibitor/Sponsor's booth space at reasonable volume levels. The Exhibitor/Sponsor shall not assign or lease to a third party all or any portion of its Exhibit Space without HDTV Magazine and/or Affinity Marketing's prior written consent.

6. CARE OF BUILDING AND EQUIPMENT:

The Exhibitor/Sponsor shall not injure, mar or deface the Event Facility or any equipment/materials furnished by HDTV Magazine and/or Affinity Marketing, the Event Facility or any Official Contractor. The Exhibitor/Sponsor shall comply with all provisions and restriction contained in this Agreement as well as those outlined by any/all selected Expo hotels and/or convention centers.

7. EVENT TERMINATION:

HDTV Magazine and/or Affinity Marketing may cancel all or any part of the Event or reduce the amount of space allocated to the Event for any reason in its sole discretion and for acts beyond its reasonable control, which acts may include but are not limited to, fire, strike, earthquake, damage, construction or renovation to the Event Facility, government regulation, public catastrophe, acts of God or any other force of nature. If the Event is canceled in its entirety, this Agreement shall automatically terminate and HDTV Magazine and/or Affinity Marketing shall refund to the Exhibitor a portion of pre-paid Exhibit Fees less reasonable expenses that were incurred by HDTV Magazine and/or Affinity Marketing in their effort to launch the Event. Refunds shall not be made for partial cancellations or reductions in the size or scope of the Event. Refunds will be made 90 days after any cancellation by HDTV Magazine and/or Affinity Marketing.

8. TERMINATION OF AGREEMENT:

HDTV Magazine and/or Affinity Marketing reserves the right to terminate this Agreement immediately by written notice if the Exhibitor/Sponsor breaches any of the terms and conditions set forth herein and/or those outlined by the "Official" Contractor/Decorator, including failure to make any payment when due under the terms of this Agreement. The terms and conditions of the "Cancellation Policy" below shall govern if this Agreement is terminated under this Section.

9. CANCELLATION POLICY:

HDTV Magazine and/or Affinity Marketing must receive written notification from the participating company of any cancellation of sponsorship or exhibit space at any Event in order for the request for cancellation to be effective. If a participating company sends written notice of cancellation after execution of this contract, and such notice is received prior to 90 days preceding the Event the participating company shall pay a cancellation fee equal to 50% of their exhibit space/sponsorship fee. If notice is received up to 60 day prior to the event the participating company shall pay a cancellation fee equal to 75% of the exhibit space/sponsorship fee. If notice is received after 60 days prior to any "agreed to" Event, the participating company shall pay a cancellation fee equal to 100% of the exhibit space/sponsorship fee. Cancellation penalty fees are non-refundable and may not be applied to future exhibit space and/or sponsorships.



Exhibitor Rules and Regulations

10. NO REFUNDS:

Accept as otherwise expressly set forth herein all payments made and due to HDTV Magazine and/or Affinity Marketing under this Agreement are made in consideration of HDTV Magazine and/or Affinity Marketing's lost or deferred opportunity to provide Exhibit Space to others and shall be deemed fully earned and non-refundable. The Exhibitor/Sponsor acknowledges that such amounts represent an agreed to measure of compensation as liquidated damages and not as a penalty.

11. INDEMNITY, INSURANCE:

The Exhibitor/Sponsor hereby releases HDTV Magazine and/or Affinity Marketing, the Event Facility, and each of their respective officers, directors, employees, agents, contractors, representatives, affiliates and assigns collectively, the "Indemnified Parties" from any claims for damage, loss, harm or injury to the person, property or business of the Exhibitor/Sponsor or any of its visitors, officers, directors, agents, employees or representatives.

The Exhibitor/Sponsor shall indemnify, defend and hold harmless the Indemnified Parties from all claims, demands, suits, liability, damages, losses, costs, fees (including attorney's fees) and expenses which result or arise from (1) injury to the person, property or business of any person, property or business of any person in connection with the Exhibitor/Sponsor's displays, or (2) the Exhibitor's actual or alleged infringement of the patent, trademark, copyright, or any other intellectual property rights of a third party.

The Exhibitor/Sponsor shall be solely responsible and liable for the security of its confidential and proprietary information, including any subrogation claims by its insurer. The Exhibitor/Sponsor shall maintain adequate property and liability insurance coverage, including but not limited to insurance coverage specified by HDTV Magazine and/or Affinity Marketing and/or the hotel and/or convention center in which The HDTV Expo takes place. The Exhibitor/Sponsor shall provide HDTV Magazine and/or Affinity Marketing with insurance certificates upon request. All such insurance policies shall name HDTV Magazine and/or Affinity Marketing, its officers, directors, agents, employees, contractors and representatives, and the Event Facility, as additional insured parties. Be sure your booth and materials are insured from the time they leave your firm until they are returned after the Event. It is suggested that you arrange for all-risk coverage. This is usually done with a rider to your existing insurance policy.

In the event of non-payment or late payment by the Exhibitor/Sponsor, HDTV Magazine and/or Affinity Marketing shall be entitled to recover from the Exhibitor/Sponsor any and all costs of collections it incurs, including attorney's fee.

12. LIMITATION OF LIABILITY: WARRANTY DISCLAIMER:

No indemnified Party shall be liable to anyone for lost profits or other incidental or consequential damages whatsoever, whether or not apprised of the likelihood of such lost profits or damages. HDTV Magazine and/or Affinity Marketing make no representations or warranties of any kind regarding the Event, or any other materials provide by HDTV Magazine and/or Affinity Marketing. HDTV MAGAZINE AND/OR AFFINITY MARKETING EXPRESSLY DISCLAIMS ALL EXPRESS AND IMPLIED WARRANTIES, INCLUDING ANY WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

13. OBSERVANCE OF LAWS:

The Exhibitor/Sponsor shall abide by and observe all federal, state and local laws, rules, regulations and ordinances applicable to the Event and the Event Facility, including and rules of the Event Facility, the Official Contractors and labor unions. The Exhibitor/Sponsor's display shall be constructed to comply with the Americans with Disabilities Act. The Exhibitor shall not discriminate against any person on the basis of age, sex, race, color, creed, national origin, sexual orientation, disability or in any other manner in connection with or related to the Event or the use of the Event Facility.

14. THE USE OF HDTV MAGAZINE AND/OR AFFINITY MARKETING SUPPLIED MATERIALS:

Any materials that are distributed to the Exhibitor/Sponsor related to the planning or execution of the Event, including but not limited to signage and/or banners are owned exclusively by HDTV Magazine and/or Affinity Marketing. HDTV Magazine and/or Affinity Marketing grants to the Exhibitor/Sponsor a non-transferable, non-exclusive license to use such materials solely in connection with Exhibitor/Sponsor's participation in the Event. If the Exhibitor/Sponsor ceases to be an Exhibitor/Sponsor at any Event, and in any event upon termination of this Agreement, the Exhibitor/Sponsor shall promptly return to HDTV Magazine and/or Affinity Marketing such materials or destroy such materials at the request of HDTV Magazine and/or Affinity Marketing.

15. GOVERNING LAW AND JURISDICTION:

This Agreement and all rights and obligations of the parties relating hereto shall be governed by and construed in accordance with the internal laws of the State of Indiana without giving effect to any conflicts of laws rules that would cause the application of the laws of any other jurisdiction. At HDTV Magazine and/or Affinity Marketing's option, any controversy or claim arising out of or relating to this agreement or the breach thereof (except for an action for injunctive relief) may be resolved by arbitration held in the County of Allen in Indiana in accordance with the rules of the American Arbitration Association, and judgment upon the award rendered by the arbitrators may be entered in any court having jurisdiction thereof. The Exhibitor agrees to submit to the exclusive jurisdiction of the State and Federal courts in the State of Indiana.

16. WAIVER OF RIGHTS, VALIDITY AND ENFORCEABILITY, BINDING NATURE OF AGREEMENT:

The rights of HDTV Magazine and/or Affinity Marketing under this Agreement shall not be deemed waived except as specifically stated in writing and signed by an officer of the HDTV Expo and/or HDTV Magazine and/or Affinity Marketing. If any term of this Agreement is declared invalid or unenforceable, the remainder of the Agreement shall continue in full force and effect. This Agreement shall be binding upon the heirs, successors and permitted assigns of the Exhibitor/Sponsor.



Exhibitor Rules and Regulations

17. TAXES AND LICENSES:

The Exhibitor/Sponsor shall be responsible for obtaining any licenses, permits or approvals under federal, state or local law applicable to its activity at the Event. The Exhibitor/Sponsor shall be responsible for obtaining any tax identification numbers and paying all taxes, license fees or other charges that shall become due to any governmental authority in connection with its activities at the Event.

18. BROADCASTS OF COPYRIGHTED MATERIAL:

No visual or audio recording or transmission will be made of The HDTV Expo without HDTV Magazine and/or Affinity Marketing's prior written consent. The Exhibitor/Sponsor shall not broadcast, perform, publish or distribute any copyrighted material at the Event unless it has obtained all necessary licenses and paid all required royalties or other payments.

19. AGREEMENT TO TERMS, CONDITIONS AND RULES – ENTIRE AGREEMENT:

The Exhibitor/Sponsor shall observe and abide by the foregoing terms and conditions and by such additional terms, conditions and rules made by HDTV Magazine and/or Affinity Marketing from time to time. This Agreement represents the entire agreement between the Exhibitor/Sponsor and HDTV Magazine and/or Affinity Marketing concerning the subject matter thereof. Any amendment to this agreement must be in writing and signed by the Exhibitor/Sponsor and HDTV Magazine and/or Affinity Marketing.